

Dhruv Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 April 2014 · WRIT - C No. - 23902 of 2014 · **Writ disposed; consider claim under clause 4.45-A in six weeks.**

HEADNOTE

A consumer sought a writ directing the distribution licensee to change the wires of his connection or affix a transformer for supply. On the licensee's submission that clause 4.45-A of the U.P. Electricity Supply Code, 2005 permits the work on deposit of cost, the Division Bench disposed of the petition without a merits grant or refusal and directed respondent No. 2 to consider the claim in accordance with that procedure within six weeks.

FACTUAL SUMMARY

Dhruv Kumar approached the Allahabad High Court seeking a direction that the distribution licensee either change all wires of his electricity connection or affix a transformer from which supply could be given. He alleged that repeated applications and reminders had gone unattended. Standing Counsel appeared for the State. Counsel for respondents 2 and 3 accepted notice and pointed to clause 4.45-A of the U.P. Electricity Supply Code, 2005, submitting that the work would be done if the petitioner deposited the cost of the work.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.45-A

consumer-funded works for wire change or transformer

HOLDING

Writ disposed with a direction to respondent No. 2 to consider the petitioner's claim for change of wires or affixation of a transformer in accordance with the procedure prescribed under clause 4.45-A of the U.P. Electricity Supply Code, 2005, within six weeks of production of a certified copy; the Court neither directed the work nor refused mandamus on merits. ¶ 1

FLAG Cited as 'section 4.45-A of the U.P. Electricity Supply Code Act, 2005'; the Code is not an Act, and hyphenated 4.45-A is recorded as spoken.

PRINCIPLE TAGS

relegate-to-statutory-remedy A consumer sought a writ directing the distribution licensee to change the wires of his connection or affix a transformer for supply. On the licensee's submission that clause 4.45-A of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LICENSEE MUST CHANGE THE WIRES OR AFFIX A TRANSFORMER, AND ON WHAT COST TERMS UNDER 4.45-A

Left for consideration under the cited procedure; counsel's deposit-of-cost submission was not adjudicated. ¶ 1